



Office of Deputy
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Maritime Affairs

THE REPUBLIC OF LIBERIA

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Marine Security Advisory: 05/2013

This Marine Security Advisory supersedes Marine Security Advisory 05/2012

Subject: U.S. Coast Guard Revises Security Advisory Regarding Ports Not Maintaining Effective Anti-Terrorism Measures

Reference: (a) USCG Port Security Advisory (2-12) - ATTACHED

Dear Shipowner/Operator/Master;

Update: The U.S. Coast Guard has issued the attached Port Security Advisory (2-12). In Port Security advisory 2-12 the US Coast Guard has determined that the Republic of Indonesia is now maintaining effective antiterrorism measures in their ports. The Republic of Indonesia is removed from the list of the Countries Affected in paragraph B of this Port Security Advisory. Therefore, actions required in paragraphs C and D of this Port Security Advisory are no longer required for vessels that arrive in the United States after visiting ports in the Republic of Indonesia.

All vessels that visited the countries listed in paragraph B of the USCG Advisory (with exceptions noted) during their last five port calls will be boarded or examined at sea by the Coast Guard to ensure required actions were taken. Failure to properly implement the actions listed in paragraph C.1 through C.5 of the attached advisory may result in delay or denial of entry into the United States.

Vessel security actions:

Effective immediately ALL Liberian registered vessels while in ports of the countries noted in the attached USCG Port Security Advisory (2-12) shall:

1. Implement measures as per the ship's security plan equivalent to Security Level 2 and
2. Take the required actions listed in section C of the attached advisory including attempting to execute a Declaration of Security (DOS).

Note: We have received reports that some ports have objected to a DOS indicating that a vessel is at Security Level 2 while the port has declared itself at Security Level 1. Therefore, the following guidelines, which have been confirmed with the USCG, should be followed:

1. A vessel is not required to raise its security level to level 2 when visiting the ports listed in ref (a), unless the port is at security level 2 or you receive notification from the Administration to increase to security level 2.

2. The USCG is aware of the possible negative effects and potential problems that may arise when attempting to execute a DOS, indicating the ship has implemented measures equivalent to Security Level 2, while the port is at Security Level 1. Therefore when executing a DOS; the USCG will accept an entry indicating Security Level 1; as long as the extra measures equivalent to Security Level 2 have been noted and recorded in the ship's log.

Reminder: No vessel shall operate at a Security Level lower than that of a port facility.

Additionally, the Master has the overriding authority to increase the Security Measures of the vessel at any time to protect the safety and security of the vessel.

For more information please contact the Security Department at telephone + 1 703 790 3434, email security@liscr.com; LISCER Duty Officer + 1 703 963 6216, email dutyofficer@liscr.com

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Port Security Advisory (2-12)

A. Background:

The Maritime Transportation Security Act of 2002 (MTSA) has mandated that the United States Coast Guard evaluate the effectiveness of anti-terrorism measures in foreign ports and provides for the imposition of conditions of entry on vessels arriving to the United States from countries that do not maintain effective anti-terrorism measures (MTSA, 46 USC § 70108).

The Coast Guard has determined that the Republic of Indonesia is now maintaining effective anti-terrorism measures in their ports. The Republic of Indonesia is removed from the list of the Countries Affected in paragraph B of this Port Security Advisory. Therefore, actions required in paragraphs C and D of this Port Security Advisory are no longer required for vessels that arrive in the United States after visiting ports in the Republic of Indonesia.

B. Countries Affected:

The Coast Guard has determined that ports in the following countries are not maintaining effective anti-terrorism measures:

Cambodia (with the exception of Phnom Penh Autonomous Port – IMO number not listed; and Sihanoukville Autonomous Port – IMO number not listed)

Cameroon (with the exception of Ebome Marine Terminal – CM394-0001; Quai GETMA (LAMNALCO Base) Facility – CMDLA-0005; Société Nationale de Raffinage (SONARA) Terminal – IMO number not listed; and Kome-Kribi 1 – CM234-0001)

Comoros

Cote d'Ivoire

Cuba

Equatorial Guinea (with the exception of Ceiba – GQ362-0001/0002; K-5 Oil Center – IMO number not listed; Luba - GQLUB-0001; Punta Europa Terminal – GQ368-0001; and Zafiro Marine Terminal – GQ370-0001)

Guinea-Bissau

Iran



Liberia (with the exception of the Firestone Facility – IMO number not listed; and Port of Monrovia – IMO Number LRMLW-0001)

Madagascar (the exception of Toamasina (also known as Tamatave) - MGTMM-0001)

Sao Tome and Principe

Syria

Timor-Leste

Venezuela

Yemen (with the exception of Ash Shahr Terminal – YEASR-0001; Balhaf LNG Terminal – IMO number not listed; and the Port of Hodeidah – YEHOD-0001)

C. Actions Required by Vessels Visiting Countries Affected:

All vessels arriving to the United States that visited the countries listed in paragraph B (with exceptions noted) during their last five port calls must take actions 1 through 5 listed below while in the countries listed in paragraph B as a condition of entry into U.S. ports:

1. Implement measures per the ship's security plan equivalent to Security Level 2;
2. Ensure that each access point to the ship is guarded and that the guards have total visibility of the exterior (both landside and waterside) of the vessel. Guards may be:
 - provided by the ship's crew, however, additional crewmembers should be placed on the ship if necessary to ensure that limits on maximum hours of work are not exceeded and/or minimum hours of rest are met, or
 - provided by outside security forces approved by the ship's master and Company Security Officer.
3. Attempt to execute a Declaration of Security;
4. Log all security actions in the ship's log; and
5. Report actions taken to the cognizant U.S. Coast Guard Captain of the Port prior to arrival in the U.S.

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Vessels that visited the countries listed in paragraph B (with exceptions noted) on or after the effective date in paragraph A, during their last five port calls will be boarded or examined by the Coast Guard to ensure the vessel took the required actions. Failure to properly implement the actions listed in paragraph C.1 through C.5 may result in delay or denial of entry into the United States.

D. Actions Required by Vessels in U.S. Ports:

Based on the findings of the Coast Guard boarding or examination, the vessels that visited the countries listed in paragraph B (with exceptions noted) on or after the effective date in paragraph A **may** be required to ensure that each access point to the ship is guarded by armed security guards and that they have total visibility of the exterior (both landside and waterside) of the vessel while in U.S. ports. The number and location of the guards must be acceptable to the cognizant U.S. Coast Guard Captain of the Port. For those vessels that have demonstrated good security compliance and can document that they took the measures called for in C.1. through C.4. above, the armed security guard requirement will normally be waived.